

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
GUILLERMINA COLON and IYESHA RODRIGUEZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JOSEPH NICOSIA (Tax # 949395)¹, POLICE
OFFICER MICHAEL MARTIN (Tax # 914857)²
and POLICE OFFICERS JOHN DOE 1-6,

Defendants.
-----X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
January 25, 2017

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

¹ Upon information and well founded belief this officer is presently assigned to the NYPD's 75th precinct.

² Upon information and well founded belief this officer is presently assigned to the NYPD's Patrol Borough Brooklyn North.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
GUILLERMINA COLON and IYESHA RODRIGUEZ,

Plaintiffs,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
JOSEPH NICOSIA (Tax # 949395), POLICE
OFFICER MICHAEL MARTIN (Tax # 914857)
and POLICE OFFICERS JOHN DOE 1-6,

Defendants.

-----X
GUILLERMINA COLON and IYESHA RODRIGUEZ (hereinafter "plaintiffs"), by their
attorney(s), THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the
defendants THE CITY OF NEW YORK, POLICE OFFICER JOSEPH NICOSIA (Tax #
949395), POLICE OFFICER MICHAEL MARTIN (Tax # 914857) and POLICE
OFFICERS JOHN DOE 1-6 (collectively referred to as the Defendants), upon
information and belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to each plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to each plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the law and statutes of the City and/or State of New York.

THE PARTIES

2. At all times material to this complaint, each plaintiff was, and still is, a resident of the City of New York, who at all times material and relevant to this complaint resided, and still resides, in Kings County, City and State of New York. Each plaintiff is a Hispanic-American female of full age.

3. At all relevant times, defendants POLICE OFFICER JOSEPH NICOSIA (Tax # 949395), POLICE OFFICER MICHAEL MARTIN (Tax # 914857) and POLICE OFFICERS JOHN DOE 1-6 (collectively referred to as defendant officer(s)), of the New York City Police Department (hereinafter "NYPD"), upon information and belief, were, and still are, law enforcement officers in the employ of the NYPD.
4. At all times herein, the defendant officers were employed as law enforcement officers of the NYPD, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officers, through its Police Department, namely the NYPD, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. Each plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on August 31, 2016, within ninety days after the malicious prosecution claim(s) alleged in this complaint arose, a written notice of claim, sworn to by each plaintiff and/or her representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff Guillermina Colon's's claim

was assigned Claim No. 2016PI025905. Plaintiff Iyesha Rodriguez' claim was assigned Claim No. 2016PI025906.

8. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.
9. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS

10. On or about 01/07/2016, at approximately 07:45 a.m., within the premises described as 585 Blake Avenue, #2C, Brooklyn, N.Y. 11207 ("subject premises") each plaintiff was unlawfully and wrongfully arrested by the defendant officers.
11. At the time of the incident, the plaintiffs, who were within the subject premises, were initially alerted to the presence of the defendant officers when they heard loud banging and knocking on the door of the subject premises.
12. At that time, also inside the subject premises with the plaintiffs were Justin Colon (the plaintiffs' son/brother), Rene Ramos (the plaintiffs' autistic son/brother), Jovan Daniels (the plaintiffs' cousin), and Shebany Figueroa (a friend of Justin Colon).
13. Upon hearing the loud knocking and banging at the front door, the plaintiff Guillermina Colon went to see who was at the door, and upon arriving there, was informed by the defendant officers that they (the officers) were cops.
14. The plaintiff Guillermina Colon then opened her front door to find out what the defendant officers wanted, whereupon the defendant officers, without the consent of any of the residents of the subject premises, physically forced their way into the subject premises by pushing their way past the plaintiff Guillermina Colon.

15. Upon entering the subject premises, the defendant officers informed the plaintiffs that they were there to arrest Justin Colon, who they claimed had an outstanding warrant that had been issued for his arrest.
16. At that time, Justin Colon was right by the front door adjacent to his mother, the plaintiff Guillermina Colon, and identified himself to the defendant officers.
17. Justin Colon informed the defendant officers that he would go with them, and asked to go get his footwear.
18. At that juncture, the defendant officers proceeded to unlawfully search every room of the subject premises, even though they did not have a warrant issued by a court of competent jurisdiction that permitted them to do so.
19. The plaintiffs protested the actions of the officers, inquiring as to why said officers were searching the subject premises when they already had the person they claimed they were there to effect an arrest of, specifically Justin Colon.
20. The defendant officers then claimed that they had recovered a weapon from inside of Justin Colon's bedroom, at which point they arrested Justin Colon and the plaintiffs.
21. The defendant officers also claimed that they had recovered a quantity of marijuana from the subject premises.
22. The defendant officers then transported the plaintiffs to the 75th precinct, where they were processed, or otherwise fingerprinted and photographed.
23. That the plaintiffs were subsequently transported to "central booking" situated within the Kings County Criminal Courthouse located at 120 Schermerhorn Street, Brooklyn, New York 11201.
24. On 01/08/2016, at approximately 10:00 p.m. the plaintiffs were arraigned in front of a judge, and charged with the following crimes/offenses:

- a. Criminal Possession of a Weapon in the Second Degree [PL 265.03(1)(B)];
- b. Criminal Possession of a Weapon in the Third Degree [PL 265.02(8)];
- c. Criminal Possession of a Weapon in the Fourth Degree [PL 265.01(1)];
- d. Criminal Possession of a Firearm [PL 265.01-B(1)];
- e. Possession of Pistol Ammunition [AC 10-131(I)(3)]; and
- f. Unlawful Possession of Marihuana [PL 221.05].

- 25. That upon arraignment the plaintiffs each plead "not guilty", and were both released upon their own recognizance.
- 26. That the case against each plaintiff was dismissed on July 29, 2016.
- 27. That at the time of the plaintiffs arrests, the defendant officers seized \$3,000.00 in cash from the plaintiff Iyesha Rodriguez, and the sum of \$280.00 in cash from the plaintiff Guillermina Colon, and said monies have not been returned to the plaintiffs.
- 28. The defendants also searched the subject premises in a destructive manner, upending the subject premises and wantonly destroying items.

CAUSE OF ACTION: UNLAWFUL ENTRY/SEARCH UNDER 42 U.S.C § 1983

- 29. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 28 of this complaint as though fully set forth herein.
- 30. That the defendants unlawfully entered into the subject premises without the plaintiffs permission or consent, even though they did not have a warrant issued by a court of competent jurisdiction that permitted them to do so.
- 31. Upon unlawfully entering into the subject premises, the defendants searched and/or caused each plaintiff and/or her property to be searched, without any individualized reasonable suspicion that the plaintiffs were concealing weapons or contraband.

32. As a result of the foregoing, each plaintiff and/or her property was/were subjected to an illegal and improper search.
33. The foregoing unlawful search violated each plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C § 1983/NEW YORK STATE LAW

34. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 33 of this complaint as though fully set forth herein.
35. The above-described respective arrest, detention and imprisonment of each plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing each plaintiff's arrest or subsequent detention.
36. As a result of each plaintiff's above-described false arrest and detention, she has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know her, was prevented from attending to her necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in her character and reputation.
37. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.
38. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
39. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE(S) OF ACTION: MALICIOUS PROSECUTION UNDER 42
U.S.C § 1983/NEW YORK STATE LAW

40. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 39 of this complaint as though fully set forth herein.
41. The commencement and continued prosecution of the criminal judicial proceeding against each plaintiff, including the arrest, the imprisonment, and the charges against each plaintiff, were committed by or at the insistence of the defendant officers without probable cause or legal justification, and with malice.
42. That the defendant officers were directly involved in the initiation of criminal proceedings against each plaintiff.
43. That the defendant officers lacked probable cause to initiate criminal proceedings against each plaintiff.
44. That the defendant officers acted with malice in initiating criminal proceedings against each plaintiff.
45. That the defendant officers were directly involved in the continuation of criminal proceedings against each plaintiff.
46. That the defendant officers lacked probable cause in continuing criminal proceedings against each plaintiff.
47. That the defendant officers acted with malice in continuing criminal proceedings against each plaintiff.
48. That the defendant officers misrepresented and falsified evidence against each plaintiff throughout all phases of the criminal proceedings.
49. That the defendant officers misrepresented and falsified evidence against each plaintiff to the prosecutors in the Kings County District Attorney's office.
50. That the defendant officers withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
51. That the defendant officers did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.

52. The criminal judicial proceeding(s) initiated against each plaintiff was/were dismissed on July 29, 2016, and terminated in each plaintiff's favor.
53. The arrest, imprisonment and prosecution of each plaintiff was/were malicious and unlawful, because each plaintiff had committed no crime and there was no probable cause to believe that each plaintiff had committed any crimes.
54. The defendant officers' actions were intentional, unwarranted and in violation of the law. The defendant officers had full knowledge that the charges made before the Court against each plaintiff were false and untrue.
55. As a consequence of the malicious prosecution by the defendant officers, each plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and her constitutional rights were violated.
56. Each plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against the defendant officers and the City of New York, individually and severally.
57. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers' acts as described above.
58. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION: DENIAL OF A CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO THE FABRICATION OF EVIDENCE

59. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 58 of this complaint as though fully set forth herein.
60. The defendant officers fabricated evidence and/or created false evidence against each plaintiff.

61. The defendant officers forwarded fabricated and false evidence/false information to the prosecutors in the Kings County District Attorney's office.
62. The defendant officers misrepresented and falsified evidence throughout all phases of the criminal proceeding.
63. The defendant officers misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office.
64. The defendant officers withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
65. The defendant officers did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
66. By creating false evidence against each plaintiff; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, which directly resulted in each plaintiff being deprived of her liberty, the defendant officers violated each plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.
67. As a consequence of the defendant officers' actions, each plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and her constitutional rights were violated. Each Plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against each of the defendants, individually and severally.
68. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
69. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION: FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983

70. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 69 of this complaint as though fully set forth herein.
71. Each and every individual defendant had an affirmative duty to intervene on each plaintiff's behalf to prevent the violation to her constitutional rights, as more fully set forth above.
72. The individual defendants failed to intervene on each plaintiff's behalf to prevent the violation of her constitutional rights, despite having had a realistic and reasonable opportunity to do so.
- As a consequence of said defendants' actions, each plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and her constitutional rights were violated. Each plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

WHEREFORE, each plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including each plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
January 25, 2017

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku (AM 5872)
Attorney for the Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
GUILLERMINA COLON and IYESHA RODRIGUEZ,

Plaintiffs,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK, POLICE OFFICER
JOSEPH NICOSIA (Tax # 949395), POLICE
OFFICER MICHAEL MARTIN (Tax # 914857)
and POLICE OFFICERS JOHN DOE 1-6,

Defendants.

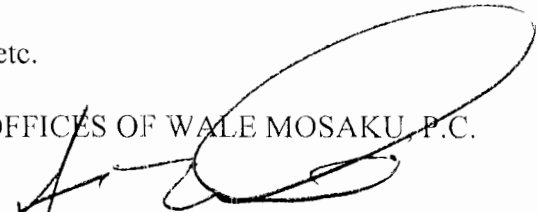
-----X
The undersigned attorney does hereby certify:

That I am the attorney for the plaintiffs and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
January 25, 2017

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.


BY: WALE MOSAKU
Attorney(s) for Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

GUILLERMINA COLON and IYESHA RODRIGUEZ,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, POLICE OFFICER
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OFFICER MICHAEL MARTIN (Tax # 914857)
and POLICE OFFICERS JOHN DOE 1-6,

Defendant(s).

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorneys for Defendant(s)
